

26STCV08326 26STCV08326

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 26STCV08326 Hearing Date: July 10, 2026 Dept: 735

Atwater v. PLC Law Group, APC, et al.

Specially Appearing Defendants' Motion to
Extend Time to File Responsive Pleading

BACKGROUND

This is a legal malpractice action. On March 16, 2026, Plaintiff Lorie Atwater filed a complaint against Defendants PLC Law Group, APC, Peter Laurence Carr, Na'Shaun Neal and Lauren McRae, asserting causes of action for (1) professional negligence; (2) breach of fiduciary duty; (3) negligent misrepresentation; and (4) breach of contract.

LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (CCP § 418.10(a)(1).)

DISCUSSION

Specially Appearing Defendants move for an extension of time to file their motion to quash service of summons. Defendants represent that they attempted to file the motion within the statutory deadline on May 18, 2026, but Defendants' counsel mistakenly believed that a filing fee was unnecessary due to Defendants' special appearance status. The clerk's office

rejected the filing for lack of filing fee. Upon learning of the rejection, Defendants' counsel paid the filing fee and filed the motion on June 3, 2026. The Court will allow the late filing. The delay in filing was due to counsel's excusable error and was diligently corrected. The Court grants Defendants' motion.

CONCLUSION

The Court grants Specially Appearing Defendants' motion to extend time to file a responsive pleading.

The clerk will give notice.